

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                            |                           |                                                                                                                                                                                                            |
|--------------------------------------------------|------------------------------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Lara Freishtat                  | Team:<br>Team # 4                                          | CCRB Case #:<br>200403706 | <input type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 04/23/2004 1:00 PM   | Location of Incident:<br>In front of § 87(2)(b), Brooklyn. | 18 Mo. SOL<br>10/23/2005  | Precinct:<br>67                                                                                                                                                                                            |
| Date/Time CV Reported<br>Fri, 04/23/2004 1:07 PM | CV Reported At:<br>CCRB                                    | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 04/23/2004 1:07 PM                                                                                                                                                      |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Erik Worobey | 10614  | 932229 | 067 PCT |
| 2. POM Mohsin Aftab | 24541  | 932239 | 066 PCT |

| Officer(s)           | Allegation                                                          | Investigator Recommendation |
|----------------------|---------------------------------------------------------------------|-----------------------------|
| A . POM Mohsin Aftab | Abuse: PO Mohsin Aftab stopped and questioned § 87(2)(b)            | A . Complaint Withdrawn     |
| B . POM Erik Worobey | Abuse: PO Erik Worobey stopped and questioned § 87(2)(b)            | B . Complaint Withdrawn     |
| C . POM Erik Worobey | Abuse: PO Erik Worobey threatened § 87(2)(b) with the use of force. | C . Complaint Withdrawn     |

### Synopsis

On April 23, 2004, at approximately 1 PM, on Rutland Road in Brooklyn, § 87(2)(b) was standing outside of his apartment building talking on his cell phone when two officers approached him. The officers, identified as PO Erik Worobey and PO Mohsin Aftab, asked § 87(2)(b) to hang up the phone and to show some identification. They also asked him what was in his shopping bag. § 87(2)(b) did not want to answer but when PO Worobey persisted, § 87(2)(b) showed the officers his identification. § 87(2)(b) alleged that during the officers questioning of § 87(2)(b) PO Worobey withdrew a can of pepper-spray and pointed it in § 87(2)(b)'s face. At that point § 87(2)(b) also a tenant in the building, yelled down from his window and asked § 87(2)(b) if he was okay. § 87(2)(b) replied that he was and § 87(2)(b) told the officers to stop harassing § 87(2)(b) and to go catch some drug-dealers. PO Worobey yelled to § 87(2)(b) to come downstairs and § 87(2)(b) told them to come up to his apartment. At that point, the officers left the area.

§ 87(2)(b) called this complaint into the CCRB, on April 23, 2004. He was successfully contacted by telephone on June 22, 2004 and § 87(2)(b) was successfully contacted on September 14, 2004. Mediation was offered to both men and they stated they would discuss the matter and call back with their decision but neither individual contacted the agency.

On November 10, 2004, § 87(2)(b) was contacted and he chose to withdraw his complaint § 87(2)(b). He stated that his decision was voluntary and he had not been coerced by anyone from the NYPD or from the CCRB. Additionally, § 87(2)(b) withdrew his complaint on November 15, 2004, § 87(2)(b).

§ 87(2)(b) He also stated that his decision was voluntary and he had not been coerced by anyone from the NYPD or the CCRB. Team 4 Assistant Supervisor Jessica Long reviewed the audiotape of both § 87(2)(b) and § 87(2)(b)'s withdrawal. Additionally, withdrawal letters were mailed to § 87(2)(b) and § 87(2)(b) with a request that they be signed, dated, and returned. Upon receipt, the signed withdrawal letters will be added to the case file.

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: